

Viswanathapalle Tanuja Lanka Tanuja, vs Nil on 22 February, 2021

Author: K. Suresh Reddy

Bench: K. Suresh Reddy

THE HON'BLE SRI JUSTICE K. SURESH REDDY

CIVIL REVISION PETITION No.1354 of 2020

ORDER :

This Civil Revision Petition is filed by the petitioners against the Order, dated 16.11.2020 passed in I.A.No.304 of 2020 in D.O.P.No.84 of 2020 on the file of the Court of Principal District Judge, Krishna at Machilipatnam.

2. Brief facts of the case are that both the petitioners are wife and husband and their marriage was performed on 27.5.2000. Out of wedlock, they were blessed with two children. Both the petitioners filed the above O.P. under Section 10-A of the Indian Divorce Act,1869, seeking divorce by mutual consent. Along with the said O.P. he also filed I.A.No.304 of 2020 seeking to waive off the statutory period of six months for granting divorce by way of mutual consent. In support of the same, learned counsel for the petitioners relied on the Judgment of the Apex Court in Nikhil Kumar Vs. Rupali Kumar¹. The learned trial Judge after hearing both sides, dismissed the said I.A., on 16.11.2020 holding that the Judgment of Apex Court relates to Section 13-B of the Hindu Marriage Act,1955 and on further ground that the Apex Court by exercising the power under Article 142 of the Constitution of India, passed the said order of waiving the statutory period, being the Principal District Judge, he has no such power to waive the statutory period of six months.

3. Aggrieved by the same, the petitioners herein filed the present civil revision petition.

2016 (5) ALT 63 (SC)

4. Heard learned counsel for the petitioners and perused the material on record.

5. Learned counsel for the petitioners submits the petitioners have fulfilled all the guidelines prescribed by the Apex Court, as such, the petitioners are entitled for waiving the statutory period of six months. He further submitted that as per the settlement, the husband has to pay monthly maintenance to the wife and children. Unless, he joins in the job in United States, he may not be in a position to pay maintenance to them. He also produced them through Video Conferencing before this Court along with their counsel Sri G.Nireekshna Rao, who also identified them. Both the wife and husband have expressed their willingness to obtain divorce and also waiving off statutory period.

6. Learned counsel for the petitioners also placed a reliance on the Judgment of the Apex Court reported in Amardeep Singh Vs. Harveen Kaur². In the said Judgment, Apex Court has prescribed certain guidelines, which are as follows :

18. Applying the above to the present situation, we are of the view that where the Court dealing with a matter is satisfied that a case is made out to waive the statutory period under Section 13-B, it can do so after considering the following :

i) the statutory period of six months specified Section 13-B(2) in addition to the statutory period of one year under Section 13-B(1) of separation of parties is already over before the first motion itself;

ii) all efforts for mediation/conciliation including efforts in terms of Order XXXIIA Rule 3 CPC /Section 23(2) of the Act/Section 9 of the Family Courts Act to reunite the 2017 (8) SCC 746 parties have failed and there is no likelihood of success in that direction by any further efforts;

iii) the parties have genuinely settled their differences including alimony, custody of child or any other pending issues between the parties;

iv) the waiting period will only prolong their agony.

19. The waiver application can be filed one week after the first motion giving reasons for the prayer for waiver.

20. If the above conditions are satisfied, the waiver of the waiting period for the second motion will be in the discretion of the concerned Court.

7. Further, it is also important to note that Section 10-A of the Indian Divorce Act, 1869 and Section 13-B of the Hindu Marriage Act, 1955 are analogous with each other. There is no difference between both the provisions. Hence, taking into consideration of all these aspects, the finding of the learned Judge is liable to be set aside.

8. In that view of the matter, the Civil Revision Petition is allowed and the Order, dated 16.11.2020 passed in I.A.No.304 of 2020 in D.O.P.No.84 of 2020 on the file of the Court of Principal District Judge, Krishna at Machilipatnam, is hereby set aside. The learned Principal District Judge, Krishna at Machilipatnam, is directed to proceed further in D.O.P.No.84 of 2020 and pass appropriate orders in accordance with law, as expeditiously as possible, preferably within a period of one (01) month from the date of receipt of a copy of this order. It is needless to mention that both the parties shall appear physically along with their counsel before the court below.

No order as to costs.

As a sequel, Miscellaneous Petitions pending, if any, shall stand closed.

_____ K. SURESH REDDY, J 22nd Februray,2021.

RPD.

HON'BLE SRI JUSTICE K. SURESH REDDY CIVIL REVISION PETITION No.1354 of 2020 Dated :
22.02.2021 RPD.